

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PHILIP WILLIAMS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, Police Officer
Thomas Smith, Shied No.: 10841, POLICE
OFFICER KATELYNN SMITH, Shield No.: 9961,
POLICE OFFICER OCTAVIO DIAZ,
Shield No.: 30832 and OFFICER[S] JOHN AND
JANE DOE, names being fictitious and meant
to designate additional offending officers,

Defendants.

SUMMONS

Index No.:

Date Purchased:

Plaintiff designates
New York County as place of
incident.

-----X
To the above named Defendants:

You are hereby summoned to answer the Complaint in this action and serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint to be assessed by the Court.

Dated: New York, New York
November 30, 2017

Yours, etc.,
MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorneys for Plaintiff

1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245


MARNI F. SCHLESINGER, ESQ.

Apicella & Schlesinger
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245

To: City of New York Corporation Counsel
The City of New York
100 Church Street
New York, NY 10007

To: Police Officer Thomas Smith
Patrol Borough Manhattan South
230 E. 21st Street
New York NY, 10010

Police Officer Octavio Diaz
Patrol Borough Manhattan South
230 E. 21st Street
New York NY, 10010

Police Officer Katelynn Smith
Midtown South Precinct
357 W 35th Street
New York, NY 10001

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PHILIP WILLIAMS,

Plaintiffs,

VERIFIED
COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, Police Officer
Thomas Smith, Shied No.: 10841, POLICE OFFICER
KATELYNN SMITH, Shield No.: 9961,
POLICE OFFICER OCTAVIO DIAZ,
Shield No.: 30832 and OFFICER[S] JOHN AND
JANE DOE, names being fictitious and meant
to designate additional offending officers,

Defendants.
-----X

Plaintiff, Philip Williams, by his attorney, Marni F. Schlesinger, a member of the law
firm, Apicella & Schlesinger, respectfully alleges, upon information and belief, as follow:

AS AND FOR A FIRST CAUSE OF ACTION

1. At the time of the commencement of this action, Plaintiff Philip Williams was and still is a resident of the County of New York.
2. That the causes of action alleged herein arose in the County of New York, City and State of New York.
3. That at all times herein mentioned, Defendant CITY OF NEW YORK was and still is, a municipal corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. The CITY OF NEW YORK maintains a Police Department.

5. That on and about December 6, 2015, Police Officer Thomas Smith, Shield No.: 10841, was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on or about December 6, 2015, at approximately 1:00 P.M., Police Officer Thomas Smith was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about December 6, 2015, Police Officer KATELYNN SMITH, Shield No. 9961 was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT
8. That on or about December 6, 2015, at approximately 2:45 P.M., Police Officer KATELYNN SMITH was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about December 6, 2015, Police Officer Octavio Diaz, Shield No. 30832 was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on or about December 6, 2015, at approximately 2:45 P.M., PO KATELYNN SMITH was working and acting within the scope of his employment as a Police Officer, and under the color of law.
11. That on and about December 6, 2015, OFFICER[S] JOHN AND / OR JANE DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
12. That on and about December 6, 2015, at approximately 12:45 P.M., OFFICER[S]

JOHN AND/OR JANE DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on December 6, 2015, at approximately 12:45 P.M. at 1514 Broadway, City and State of New York, Plaintiff, while wearing a Darth Vader costume was improperly arrested, and confined without knowledge of warrant, proper authority or justification, having no reason in law or fact to arrest or confine PHILIP WILLIAMS.
14. That Defendants, their agents and/or employees arrested Plaintiff, PHILIP WILLIAMS without any basis in law or fact and without reasonable, probable or just case or justification.
15. That the Defendants, their agents, servants and / or employees arrested the Plaintiff PHILIP WILLIAMS without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
16. On December 6, 2015 at about 2:45 P.M. at 1514 Broadway, County of New York City, City and State of New York, Philip Williams, while wearing a Darth Vader costume suddenly and without warning unlawfully detained and held within the custody Police officers from the New York City Police Department, their agents servants and or employees who unlawfully and without justification did detain, question, assault, search, and arrest Philip Williams against his will and without probable cause. They then took Philip Williams into custody without telling Philip Williams why they were detaining him.
17. That prior to his arrest, the Plaintiff, PHILIP WILLIAMS, was lawfully walking by 1514 Broadway, County of New York, City and State

of New York.

18. That the Defendants, their agents, servants and / or employees then arrested and confined the Plaintiff, PHILIP WILLIAMS, without any basis in law or fact and without reasonable, probable or just cause or justification.
19. That the Defendants, their agents, servants and / or employees willfully and unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without any basis in law or fact, and Plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.
20. That the Defendants, their agents, servants and /or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
21. That the Defendants, Police Officer Thomas Smith, Police Officer Katelynn Smith and Police Officer Octavio Diaz, OFFICER[S] JOHN AND / OR JANE DOE and did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff thereby causing him to suffer an unjust prosecution that Defendants had no reasonable expectation would succeed.
22. That Defendants, their agents, servants and /or employees continued to prosecute Plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.
23. That all criminal charges brought against Plaintiff, which were brought under

docket number 2015CN008487 in the New York Criminal Court regarding the incidents of December 6, 2015, were dismissed by the Honorable Kevin McGrath on September 6, 2016, and the criminal proceedings were terminated in Plaintiff's favor.

24. That all criminal charges brought against Plaintiff were begun in malice without probable cause and a reasonable belief that the prosecution would succeed.
25. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.
26. As a result of the malicious prosecution, Plaintiff was deprived of is liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately two hundred and seventy-five days.
27. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of racial minority, and engaging in a policy and procedure of arresting persons upon pretext and / or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population, and testify falsely so often, omitting such acts or fabricating evidence under pretext, that such conduct is

considered routine by the offending officers, without reprimand to the offending officers.

28. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy, practice, procedure and record and openly acknowledged or known by the Defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.
29. Said policy, practice and procedure of having arrest quotas and /or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, where at Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.
30. Additionally in the case of Floyd. et al. v. City of New York. et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.
31. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in

2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

32. Additionally, Defendants as named herein have condoned, permitted and caused a policy, practice and procedure of arresting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under the pretense of violating Penal Laws which specify the crime of possession of things where the arrested persons do not so possess, and falsely swearing that they observed innocent persons in possession of such things, or acting in concert for the sale and possessing of things falsely for the purposes of satisfying arrest quotas and thereafter searching said individuals without the above mentioned requisite articulable factual basis supporting a reasonable suspicion to believe the arrestee secreted evidence to humiliate and subjugate said minority persons.

33. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking in situations similar to those complained of herein is demonstrated by and has occurred to such individuals such as Victor Rodriguez on September 20, 2011; Jonathan Bailey on August 3, 2011; Jose Reyes on December 14, 2011; Milton Chavis on March 5, 2012; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April 8, 2013; Anthony Jones on June 5, 2013; Harold Fields on April 16, 2014, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments and in their own

compilations of statistical data.

34. The herein above described actions and omissions, engaged in under the color of law by the named Defendants and their commanders and supervisors, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the Plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.
35. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
36. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
37. That as a result of the foregoing, the Plaintiff PHILIP WILLIAMS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

38. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 37 as though more fully set forth herein.

39. That on or about October 27, 2016, and within 90 days after the claim herein sued upon, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant PHILIP WILLIAMS, to be presented to the Defendant CITY OF NEW YORK, by presenting it to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the Defendant, a General Municipal Law § 50-h hearing was held for claimant and claimant testify thereat on January 25, 2017, and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claim is based.
40. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
41. That on or about December 6, 2015 at approximately 12:45 P.M. at 1514 Broadway, City and State of New York, Plaintiff, was improperly arrested, and confined without knowledge of warrant, proper authority or justification, having no reason in law or fact to arrest or confine PHILIP WILLIAMS.
42. That the Defendants, their agents, servants and / or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable,

probable or just cause or justification.

43. That the Defendants, their agents, servants and /or employees willfully and unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without any basis in law or fact, and Plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.
44. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
46. That as a result of the foregoing, the Plaintiff PHILIP WILLIAMS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

47. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46as though more fully set forth herein.
48. That on or about October 27, 2016, and within 90 days after the claim herein sued upon, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant Philip Williams, to be presented to the Defendant CITY OF NEW YORK, by presenting it to the offices of the Defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have

been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the Defendant, a General Municipal Law § 50-h hearing was held for claimant and claimant testify thereat on March 15, 2016 and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claim is based.

49. That the Defendants Police Officers Thomas Smith, Katelynn Smith, Octavio Diaz and OFFICER[S] JOHN AND/OR JANE DOE did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff thereby causing Plaintiff to suffer an unjust prosecution initiated and continued without probable cause that Defendants had no reasonable expectation would succeed.
50. That all criminal charges brought against Plaintiff were begun in malice without probable cause nor a reasonable belief that the prosecution would succeed.
51. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
52. That Defendants, their agents, servants and /or employees continued to prosecute Plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him
53. That all criminal charges brought against Plaintiff, which were brought under docket number 2015CN008487 in the New York Criminal Court regarding the incidents of December 6, 2015, were dismissed by the Honorable Kevin McGrath on September 6, 2016, and the criminal proceedings were terminated in Plaintiff's favor.

54. That all criminal charges brought against Plaintiff were begun in malice without probable cause and a reasonable belief that the prosecution would succeed.
55. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.
56. As a result of the malicious prosecution, Plaintiff was deprived of is liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately two hundred and seventy-five days.
57. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
59. That as a result of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FORTH CAUSE OF ACTION

60. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 59 as though more fully set forth herein.
61. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and/or servants and negligently retained its employees, agents, and/or servants.

62. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and/or servants and negligently retained its employees, agents, and / or servants in the proper conducting arrests.
63. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff, PHILIP WILLIAMS was denied his freedom and rights under the federal and state constitutions and received mental pain and suffering; that the Plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.
64. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
65. That as a result of the foregoing, the Plaintiff, PHILIP WILLIAMS was

damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First ,
Second, Third and Forth Causes of Action inclusive of punitive damages, and attorneys'
fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts,
together with the costs and disbursements of this action.

November 30, 2017

Yours, etc.,
MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorney for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245

To: City of New York Corporation Counsel
The City of New York
100 Church Street
New York, NY 10007

To: Police Officer Thomas Smith
Patrol Borough Manhattan South
230 E. 21st Street
New York NY, 10010

Police Officer Katelynn Smith
Manhattan South Precinct
357 W 35th Street
New York, NY 10001

Police Officer Octavio Diaz
Patrol Borough Manhattan South
230 E. 21st Street
New York NY, 10010

I, the undersigned, an attorney admitted to practice in the courts of New York State,

RECEIVED NYSCEF: 12/01/2017

NYSCEF DOC

No. 1

Check Applicable Box

☐Attorney's
Affirmation

certify that the within
has been compared by me with the original and found to be a true and complete copy.
state that I am
the attorney(s) of record for
action; I have read the foregoing
the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters
I believe it to be true. The reason this verification is made by me and not by

in the within
and know the contents thereof;

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: 11/20/17

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, being duly sworn, depose and say: I am
in the action; I have read the foregoing

the Plaintiff
Summons of Complaint

The name signed must be printed beneath

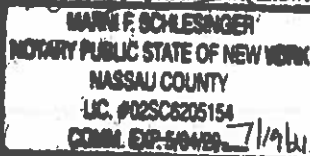
Check Applicable Box

☐Corporate
Verification

and know the contents thereof; the same is true to my own knowledge, except
as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

the
of
a
corporation and a party in the within action; I have read the foregoing
and know the contents thereof; and the same is true to my own knowledge,
except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This
verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:



Sworn to before me on 30th
day of November, 2017

X
The name signed must be printed beneath
Philip Williams

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is checked—indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On

I served the within

Check Applicable Box

☐Service
By Mail

by mailing a copy to each of the following persons at the last known address set forth after each name below.

☐Personal
Service on
Individual

by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served
to be the person mentioned and described in said papers as a party therein:

☐Service by
Electronic
Means

by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL
at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a
copy to the address set forth after each name.

☐Overnight
Delivery
Service

by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name
below.

Sworn to before me on

The name signed must be printed beneath